

K. Satrabati Devi vs Dr. Konjengbam Gunabanta Singh on 5 October, 2023

Author: M.V. Muralidaran

Bench: Mv Muralidaran, A. Guneshwar Sharma

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IN THE HIGH COURT OF MANIPUR
AT IMPHAL
Mat.App. No.1 of 2023

1. K. Satrabati Devi, aged about 60 years, (D.O.B.: 02.03.1962), d/o., (L) Konsam Jadumani Singh, r/o., Sagolband Tera Khuraijam Leirak, P. S. Lamphel, P. O. Imphal, Imphal West District, Manipur, PIN Code.795001.

Petitioner /appellant

Vs.

1. Dr. Konjengbam Gunabanta Singh, aged about 68 years, s/o (L) Konjengbam Tombirei Singh, r/o Haobam Marak Chingtham Leikai, P. S. & P. O. Singjamei, Imphal West District, Manipur, PIN Code. 795008.

...Principal Respondent

2. Sujata Konjengbam, aged about 38 years, (D. O. B.:

01.03.1984) d/o., K. Satrabati Devi (Mother) Konjengbam Gunabanta Singh(Father) r/o., Sagolband Tera Khuraijam Leirak, P. S. Lamphel, P.O., Imphal, Imphal West District, Manipur, PIN Code 795001.

3. Lexia Konjengbam, aged about 27 years, (D. O. B.:

31.07.1995) d/o., K. Satrabait Devi (Mother) Konjengbam Gunabanta Singh (Father) r/o., Sagolband Tera Khuraijam Leirak, P.S Lamphel, P. O. Imphal, Imphal West District, Manipur, PIN Code 795001.

...Perfoma Respondents BEFORE HON'BLE THE ACTING CHIEF JUSTICE MR. MV MURALIDARAN HON'BLE MR. JUSTICE A. GUNESHWAR SHARMA For the petitioners : Mr. N.Mahendra, Advocate For the Respondents : None appeared Date of reserving judgment : 01.08.2023 and order Date of Judgment and : 05.10.2023.

Order JUDGMENT AND ORDER (CAV) (M.V. Muralidaran, ACJ) Heard Mr.N.Mahendra, learned counsel for the appellant. Despite service of notice and the names being printed in the cause list, none appeared for the respondents and they were called and set ex parte.

2. This appeal has been filed by the appellant against the decree dated 10.2.2023 and judgment and order dated 06.2.2023 passed in Mat. (Dec) Suit No.40 of 2022 on the file of the Family Court, Manipur.

3. Mat. (Dec) Suit No.40 of 2022 has been filed by the appellant to declare that she is the single unmarried mother. The Family Court framed a preliminary issue as to whether it has jurisdiction to entertain the suit or not? Upon hearing the learned counsel for the appellant, the Family Court has given a finding that the Family Court has no jurisdiction to entertain the suit of the appellant, as there is no marital relationship between the appellant and the first respondent. Aggrieved by the said judgment and order, the appellant has filed the present appeal.

4. Assailing the impugned judgment and decree, the learned counsel for the appellant submitted that the trial Court ignored the provisions of Section 7(1)(b) read with Section 7(1)(3), either or both, of the Family Courts Act, 1984. According to the learned counsel, the Family Court has jurisdiction to entertain the suit filed by the appellant. The learned counsel would submit that for a suit or proceeding for declaration as to the matrimonial status of any person (man or woman) as provided under Section 7(1)(b), it will include the matrimonial status of "never married".

5. Mr. N. Mahendra, learned counsel for the appellant further submitted that the matrimonial status of any person will come in one of three groups, namely, (i) married; (ii) divorced, separated or widowed; and (iii) never married. The law in India recognizes family of single parent (either of man or woman) having children. A family of single mother or father having child from the live-in-relationship or adoption or otherwise. According to learned counsel for the appellant, right of a woman to have a family with child without marriage with a man is recognized. However, ignoring all these, the Family Court passed the judgment holding that the Family Court has no jurisdiction to entertain the suit.

6. In the appeal, notices to respondents 1 to 3 were sent and the service report of this Court indicates that the respondents have been served. Though the respondents 1 to 3 were served and their names printed in the cause list, none appeared on behalf of them. The respondents 1 to 3 were called in open Court. However, none appeared and they were set ex parte.

7. The case of the appellant is that she and the respondents are Hindus by religion and the appellant is the single unmarried mother of respondents 2 and 3. The appellant was appointed in the Medical Department, Government of Manipur, on 2.9.1981 and posted at PHSC, Haoreibi Mayai Lekai. Thereafter, she was promoted as Female Health Supervisor on 2.1.1993 and posted at Yambem, PHC and while working as ANM, the appellant became acquainted with the first respondent, a Government Doctor, who is unmarried person and established live-in- relationship on the promise to marry the appellant. Later on, the appellant came to know that the first respondent was a married person having wife and child. The appellant became pregnant and first daughter Sujata Konjengbam

(second respondent) was born on 1.3.1984 and the second daughter Lexia Konjengbam (third respondent) was born on 31.7.1995. The second respondent is married and the third respondent is a student and unmarried. The appellant was allowed to retire from service on attaining the age of superannuation on 31.3.2022. Thereafter, while processing pension papers, the authority concerned demanded joint photograph of the appellant and her husband. The appellant instead of submitting her joint photograph of family members consisting of the appellant and the respondents 2 and 3 informed the authorities that the appellant did not have a husband but has children. As such, the appellant would not be able to submit the joint photograph of the appellant with her husband. The appellant requested the authorities concerned to process the pension papers without joint photograph of the appellant and her husband as the appellant did not have a husband. But the authorities refused to process the pension papers saying that the statement of the appellant is absurd as the appellant is having daughters. Because of the non- submission of the joint photograph of the appellant and her husband, the processing of pension process has been stopped by the authorities.

8. Mr. N. Mahendra, learned counsel for the appellant contended that the suit is filed under Section 34 of the Specific Relief Act read with Section 7 of the Family Courts Act for declaration that the appellant is the single unmarried mother. The suit or petition for declaration as single unmarried mother is squarely covered under Section 7(e) of the Family Courts Act and, thus, the Family Court has jurisdiction to entertain the suit.

9. Section 7(e) of the Family courts Act, provides:

"7. Jurisdiction. - (1) Subject to the other provisions of this Act, a Family Court shall -

(a) ...

(b) ...

Explanation. - The suits and proceedings referred to in this sub-section are suits and proceedings of the following nature, namely

(a) ...

(b) ...

(c) ...

(d) ...

(e) a suit proceeding for a declaration
as to the legitimacy of any
person."

10. Relying upon the decision of the Apex Court in the case of *Renubala Moharana v. Mina Mohanty*, (2004) 4 SCC 215, the Family Court has not entertained the suit of the appellant, as it has no jurisdiction.

11. Admittedly, the relief sought in the *Renubala Moharana*, supra, is entirely different from the relief sought for in the present case. In *Renubala Moharana*, supra, a declaratory relief as regards the illegitimacy of the child was sought and the Family Court as well as the High Court held that such relief cannot be granted, which was affirmed by the Apex Court. In other words, the relief prayed in *Renubala Moharana*, supra, is regarding guardianship.

12. In *Renubala Moharana*, supra, the Apex Court held that "the first relief sought for by the appellants cannot be granted by the Family Court for the reason that declaration as to the legitimacy of any person without any claim of marital relationship is not directly entertainable by the Family Court". The Apex Court in paragraph (6), however, held that "under Section 7(1) read with clause (e) of the Explanation, a suit or proceeding for a declaration "as to the legitimacy of any person" is within the jurisdiction of the Family Court".

13. As stated supra, the present suit has been filed for declaration that the appellant is the single unmarried mother. The appellant herself admitted that the respondents 2 and 3 are born on account of the live-in relationship with the first respondent.

14. In *ABC v. State (NCT of Delhi)*, AIR 2015 SC 2569, the Apex Court held:

"13. The issue at hand is the interpretation of Section 11 of the Act. As the intention of the Act is to protect the welfare of the child, the applicability of Section 11 would have to be read accordingly. In *Laxmi Kant Pandey v. Union of India*, 1985 (sup) SCC 701 : (AIR 1986) SC 272, this Court prohibited notice of guardianship applications from being issued to the biological parents of a child in order to prevent them from tracing the adoptive parents and the child. Although the Guardians and Wards Act was not directly attracted in that case, nevertheless it is important as it reiterates that the welfare of the child takes priority above all else, including the rights of the parents. In the present case we do not find any indication that the welfare of the child would be undermined if the Appellant is not compelled to disclose the identity of the father, or that Court notice is mandatory in the child's interest. On the contrary, we find that this may well protect the child from social stigma and needless controversy."

15. As per Explanation (b) to Section 7(1), a suit or a proceeding for a declaration as to the validity of both marriage and matrimonial status of a person is within the exclusive jurisdiction of the Family Court since under Section 8, all those jurisdictions covered under Section 7 are excluded from the purview of the jurisdiction of civil Courts.

16. In *Balram Yadav v. Fulamaniya Yadav*, AIR 2016 SC 2161, the Apex Court held:

"7. Under Section 7(1) Explanation (b), a Suit or a proceeding for a declaration as to the validity of both marriage and matrimonial status of a person is within the exclusive jurisdiction of the Family Court, since under Section 8, all those jurisdictions covered under Section 7 are excluded from the purview of the jurisdiction of Civil Courts. In case, there is a dispute on the matrimonial status of any person, a declaration in that regard has to be sought only before the Family Court. It makes no difference as to whether it is an affirmative relief or a negative relief. What is important is the declaration regarding the matrimonial status. Section 20 also endorses the view which we have taken, since the Family Courts Act, 1984, has an overriding effect on other laws."

17. As per the decision in Balram Yadav, supra, declaration as to the validity of both marriage and matrimonial status of a person is within the exclusive jurisdiction of the Family Court. As stated supra, the appellant filed the suit to declare her as single unmarried mother of the respondents 2 and 3, who were stated to have been born on account of the live-in relationship of first respondent with the appellant. It is the first respondent who has to appear before the Court and say that there is no relationship between him and the appellant. In the instant case, the appellant has taken efforts to serve first respondent. Despite service, none appears for the first respondent both before the Family Court and the High Court.

18. The merits of the averments in the plaint cannot be gone into at this stage and the same requires oral and documentary evidence. The question before this Court is whether the suit in the nature filed by the appellant is entertainable by the Family Court or not. On a thorough reading of Explanation (e) to Section 7 of the Family Court Act, the suit of the appellant is very well maintainable before the Family Court. It is for the Family Court concerned to grant the relief or not based on the evidences to be produced by the parties. Merely because this Court held that the suit is maintainable before the Family Court, it cannot be said that the relief prayed for by the appellant in the suit is granted. It is made clear that this Court has not delved into the merits of the claim made in the suit and it is for the Family Court to decide the same.

19. It appears that respondents 2 and 3 have appeared before the Family Court and filed an affidavit stating that the first respondent is a Hindu by religion and being a Hindu he could not marry the appellant for the simple reason that already he was married, having wife and child. The respondents 2 and 3 stated in the said affidavit that the appellant is their mother and she is an unmarried person having two children. They are illegitimate children of respondent No.1.

20. In the case of illegitimate children, the sole caregiver is one of the parents. This is not a case of seeking direction for guardianship. The children are grown up - one married and the other is a student. The appellant is a retired Government servant whose pension papers are not processed for want of photographs of the family members.

21. It is well settled law that where Special Courts or Tribunals are set up and disputes regarding jurisdiction arise, the attempt should be to confer jurisdiction on such Special Courts or Tribunals, rather than to exclude their jurisdiction.

22. In K.A.Abdul Jaleel v. T.A.Shahida, AIR 2003 SC 2525, the Apex Court held that the approach of a Family Court is radically different from that adopted in ordinary civil proceedings. It was also held that the jurisdiction of a Court created especially for resolution of disputes of certain kinds should be construed liberally and a restricted meaning if ascribed to the explanation appended to Section 7 of the Family Courts Act would frustrate the objects wherefor the Family Courts were set up. In the said decision, the Apex Court further held that even after dissolution of the marriage a dispute as to property of the spouses was within the exclusive jurisdiction of the Family Court.

23. As stated supra, the declaration of the appellant as single unmarried mother can be granted only based upon the documentary proof and evidences to be produced by the parties. It is reiterated that this Court has not gone into the merits of the suit.

24. This Court is of the considered view that suit filed by the appellant is within the exclusive jurisdiction of the Family Court since under Section 8 of the Family Courts Act, all those jurisdictions covered under Section 7 are excluded from the purview of the jurisdiction of the Civil Courts.

25. For all the reasons stated above, the judgment and order and the decree of the Family Court impugned in the appeal are set aside and the appeal is allowed. It is held that the Family Court, Manipur at Lamphelpat has jurisdiction to entertain the suit, namely Mat. (Dec) Suit No.40 of 2022 filed by the appellant. The matter is remanded back to the Family Court with a direction to proceed with the suit in accordance with law. No costs.

It is made clear that this Court has not delved into the merits of the suit and it is for the Family Court to decide the same in accordance with law and based on the oral and documentary evidence produced by the parties.

JUDGE

ACTING CHIEF JUSTICE

FR/NFR

Ab. Surjit